

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 10
JUDICIAL OFFICER: CHARLES S TREAT
HEARING DATE: 06/18/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule 3.43(2).*)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED**. Dept. 10's email address is: dept10@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 10
Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

LINE 3 Levinson v Ho

This case has been dismissed. Still lingering in the file, however, is a lis pendens which is no longer operative, which defendant Ho moves to expunge. The motion is unopposed, and it is **granted**.

1. 8:31 AM CASE NUMBER: C25-01059

CASE NAME: SHELLEY MYTHEN VS. CARY JARVIS

*FURTHER CASE MANAGEMENT CONFERENCE

FILED BY:

TENTATIVE RULING:

See Line 8 below. The case management conference is **continued** to December 16, 2026 at 8:30 a.m.

2. 10:00 AM CASE NUMBER: MSC21-01952

CASE NAME: TARA STARR VS. THOMAS STARR

SETTLEMENT CONFERENCE (WITH SETTLEMENT MENTOR)(ALL PARTIES AND COUNSEL ARE REQUIRED TO APPEAR IN PERSON)

FILED BY:

TENTATIVE RULING:

Parties and counsel to **appear in person** for settlement conference.

3. 9:00 AM CASE NUMBER: C23-02179

CASE NAME: DMITRIY SHORNIKOV VS. LAKE ALHAMBRA PROPERTY OWNERS ASSOCIATION

HEARING ON SUMMARY MOTION JUDGMENT

FILED BY: SHORNIKOV, DMITRIY

TENTATIVE RULING:

Before the Court is Plaintiff Dmitriy Shornikov's motion for summary judgment or in the alternative summary adjudication. The motion relates to Plaintiff's verified complaint for violations of Civil Code §§ 5103(b)(1), 5103(b)(2), 5103(e), 5105(a), and 5115(c). The motion also seeks adjudication of Defendant Lake Alhambra Property Owners' Association's eighth affirmative defense under Civil Code § 5145(a).

By his motion, Plaintiff seeks to void the 2023 Board of Directors election. Plaintiff also seeks statutory damages and attorneys' fees and costs.

As a threshold issue, Defendant argues that Plaintiff's motion is procedurally defective in several respects: omission of a statement of facts in the memorandum of points and authorities, in violation of California Rule of Court 3.1113(b); facts in the memorandum that are not captured in the separate statement as required by Code of Civil Procedure § 437c(b)(1); and failure of the separate statement to comply with California Rule of Court 3.1350 in several respects.

First, the Court notes that: "[a]ll material facts must be set forth in the separate statement. 'This is the Golden Rule of Summary Adjudication: if it is not set forth in the separate statement, *it does not exist*. Both the court and the opposing party are entitled to have all the facts upon which the moving party bases its motion plainly set forth *in the separate statement*.'" (*United Community Church v. Garcin* (1991) 231 Cal.App.3d 327, 337, italics in original, superseded by statute on other grounds, as stated in *Certain Underwriters at Lloyd's of London v. Superior Court* (1997) 56 Cal.App.4th 952, 957, fn. 4.) The Court also notes that it has the discretionary power to deny summary judgment on the basis of failure to comply with California Rule of Court 3.1350. (*Truong v. Glasser* (2009) 181 Cal.App.4th 102, 118.)

Notwithstanding the above defects, the Court reaches the merits of Plaintiff's motion. Counsel for Plaintiff is cautioned that future motion practice must comply with the California Rules of Court and Civil Procedure.

For the following reasons, the motion is **denied**.

Request for Judicial Notice

The Association requests Judicial notice of Assembly Bill 502 and the Verified Complaint in the matter *Shornikov v. Lake Alhambra Property Owners Association*, Contra Costa County Superior Court, Case No. MSL19-08297. Plaintiff objects to the request.

An assembly bill constitutes cognizable legislative history of which the Court may take judicial notice.